IN THE SUPREME COURT FOR THE STATE OF ALASKA

In re 2011 REDISTRICTING CASES:	Supreme Court No. S-14441 Superior Court Case No. 4FA-11-2209CI Consolidated Cases 4FA-11-2213CI 1JU-11-0782CI

ALASKA REDISTRICTING BOARD'S REVISED PETITION FOR REVIEW FROM THE SUPERIOR COURT OF THE STATE OF ALASKA FOURTH JUDICIAL DISTRICT AT FAIRBANKS, THE HONORABLE MICHAEL P. MCCONAHY, PRESIDING

This petition addresses the trial court's ruling with Respect to House Districts 37 & 38

MICHAEL D. WHITE, AK8611144
NICOLE A. CORR, AK0805022
PATTON BOGGS LLP
601 West 5th Avenue, Suite 700
Anchorage, AK 99501
mwhite@PattonBoggs.com
Telephone: 907-263-6300
Facsimile: 907-263-6345

Attorneys for Petitioner
Alaska Redistricting Board

Filed in the Supreme Court of the State of Alaska, this _____ day of February, 2012.

Marilyn May, Clerk

By: _____
Deputy Clerk

TABLE OF CONTENTS

Page

INTRODUCTION 1

QUESTIONS PRESENTED FOR REVIEW 1

STATEMENT OF FACTS 1

A. The Alaska Constitutional Redistricting Framework 1

B. The "Benchmark" for Section 5 Preclearance Purposes 3

C. Demographic Challenges Faced by the Board Made Compliance with the VRA Extraordinarily Difficult 5

1. Substantial Under-Population of Benchmark Alaska Native Districts 6

2. Lack of Alaska Native Population Concentrations Adjacent to the Benchmark Alaska Native Districts 7

3. Inability to Create Minority Districts in Urban Areas 8

4. Increase in Racially Polarized Voting Raised the Minimum Alaska Native VAP Percentage Needed for an Effective District 8

D. Creating a Non-Retrogressive Plan that Complied with Section 5 10

E. The Proclamation Plan 13

F. Preclearance Submission 16

STANDARD OF REVIEW 17

STATEMENT OF GROUNDS WHY DECISIONS BELOW ARE ERRONEOUS 18

A. House District 38 Was Necessitated by the Board's Need to Create a Non-Retrogressive Plan that Complied with Section 5 of the Federal Voting Rights Act. 18

1. The Trial Court Erroneously Ruled the Alaska Native VAP in the Alaska Native Districts is Higher Than is Necessary Under the VRA 19

a. The Trial Court Misconstrued the Standards and Requirements of Section 5 of the VRA 19

b. The Trial Court's Rationale is Based on a Misinterpretation of *Hickel v. Southeast Conference* 22

c. The Trial Court's Rationale Has Been Rejected by at Least One Federal Court 26

2. The Configuration of HD 38 Was Not Influenced by the Board's Decision to Avoid Pairing Senator Lyman Hoffman 27

3. The Trial Court's Decision Creates an Unworkable Standard that Ignores Alaska's Demographics and Geography 28

4. Even Under the Trial Court's Flawed Reasoning, HD38 is Necessary Under the VRA 31

B. The Configuration of House District 37 Was Necessitated by the Board's Need to Create a Non-Retrogressive Plan that Complied with Section 5 of the VRA 32

1. The Trial Court Erroneously Ruled the Alaska Native VAP in the Alaska Native Districts is Higher Than is Necessary Under the VRA 32

2. The Trial Court Erroneously Concluded the Board's Concerns Regarding the Pairing of Alaska Native Incumbent Lyman Hoffman Were Too Speculative 33

a. The Trial Court's "Belief" of No Pattern 34

b. Preclearance Despite Pairing of Senator Kookesh 36

c. Preclearance Despite Objection from Aleut Corporation 37

STATEMENT OF RELIEF SOUGHT 39

TABLE OF AUTHORITIES

Page(s)

CASES

Bartlett v. Strickland,
556 U.S. 1 (2009) 3

Beer v. United States,
425 U.S. 125 (1976) 20

Braun v. Borough,
193 P.3d 719 (Alaska 2008) 17

Georgia v. Ashcroft,
539 US 461 (2003) 20

Gingles v. Edmisten,
590 F. Supp. 345 (E.D.N.C. 1984) 31

Groh v. Egan,
526 P.2d 863 (Alaska 1974) 17

Hickel v. Southeast Conference,
846 P.2d 38 (Alaska 1992) 22, 23, 24, 25, 26

In re 2001 Redistricting Cases,
44 P.3d 141 (Alaska 2002) 17, 18

Kenai Peninsula Borough v. State,
743 P.2d 1352 (Alaska 1987) 17, 18, 39

State of Texas v. United States, et al.,
__ F. Supp. 2d. __, 2011 WL 6440006, D.D.C., Dec. 22, 2011
(No. CIV.A. 11-1303 TBG) 26, 27

Thornburg v. Gingles,
478 U.S. 30 (1986) 31

STATUTES AND REGULATIONS

42 U.S.C. § 1973c 20, 38

28 C.F.R. § 51.57-51.59 ..... 12, 35

Alaska Const. art VI, § 4 1

Alaska Const. art. VI, § 6 ..... 2, 18, 19, 25, 30

Alaska Const. art. VI, § 10 2

Guidance Concerning Redistricting Under Section 5 of the Voting Rights Act, Fed. Reg. Vol 76, No. 27 (February 9, 2011) 4, 20, 21, 24

INTRODUCTION

The Alaska Redistricting Board ("Board") petitions this Court to review and reverse those portions of the Trial Court's decision holding the Board was not justified in deviating from strict compliance with the Alaska Constitution in its configuration of House Districts 37 and 38 in order to comply with the requirements of Section 5 of the federal Voting Rights Act ("VRA").

QUESTIONS PRESENTED FOR REVIEW

1. Whether the trial court erred in holding the configuration of Proclamation House District 37 was not justified by the Board's need to adopt a non-retrogressive redistricting plan that complied with Section 5 of the federal Voting Rights Act?

2. Whether the trial court erred in holding the configuration of House District 38 was not justified by the Board's need to adopt a non-retrogressive redistricting plan that complied with Section 5 of the federal Voting Rights Act?

STATEMENT OF FACTS[1]

A. The Alaska Constitutional Redistricting Framework

Article VI, Section 4 of the Alaska Constitution tasks the Board with establishing 40 single-member House districts and 20 single-member Senate districts, each comprised of two House districts. The 2010 census data showed a total statewide population of

[1] The Board's statement of facts focuses on the facts relevant to the issues presented for review. The Trial Court's February 3, 2011 "Memorandum Decision and Order Re: 2011 Proclamation Plan" [Jt. Exc. 1-236] provides a thorough overview background of this case. The Court is also referred to the Board's Trial Brief, which provides an exhaustive statement of the undisputed facts. [Bd. Exc. 1275-1288.]

710,231 people. [Bd. Exc. 1131.] Therefore, the ideal size of a House district is 17,755, the number obtained by dividing the total population by 40. Alaska Const. art VI, § 6. [*Id.*] Senate districts must consist of, as nearly as practicable, two contiguous House districts; therefore, an ideal Senate district is 35,510. [*Id.*] Article VI, Section 6 also requires that House districts be contiguous, compact, and contain as nearly as practicable a relatively integrated socio-economic area.

Pursuant to Article VI, Section 10 of the Alaska Constitution, the Board was required to adopt a draft plan or plans 30 days after the reporting of the decennial census of the United States, and a final plan and proclamation no later than 90 days after the reporting of the census. The Board received block level census data from the U.S. Bureau of the Census on March 13, 2011. [Bd. Exc. 1131.] Thus, the Board had until April 14, 2011 to adopt a draft plan, and until June 13, 2011 to adopt a final plan. [*Id.*] The Board held its first meeting on September 13, 2010, and met regularly through June 14, 2011. [Bd. Exc. 1333.] The Board met all mandated deadlines and adopted its Proclamation Plan on June 13, 2011. [Bd. Exc. 1128-1200.]

The Board's Proclamation Plan provides Alaskans with the most equal and fair representation in Alaska's history. The Proclamation Plan has an overall population deviation of 8.47% for House districts and 7.54% for Senate districts, the lowest of any Alaska redistricting plan and the closest to fulfilling the one-person/one-vote criterion, the touchstone of redistricting. [Bd. Exc. 1134, 1145.] The overall deviation range in Alaska's five largest urban areas (Anchorage, Fairbanks, Juneau, Mat-Su, and Kenai) which contains nearly 80% of Alaska's population, are substantially tighter, all lower

than 2.55% for the House and 1.66% for the Senate. [*Id.*]

The Board accomplished this equality of representation "under daunting conditions . . . in the most open manner of any redistricting process" in Alaska's history, [Jt. Exc. 51], while simultaneously satisfying its mandate to protect the voting rights of Alaska Natives. The Board was able to construct a non-retrogressive plan that complied with Section 5 of the VRA that received preclearance from the Department of Justice on October 11, 2011. [Bd. Exc. 1254.]

B. The "Benchmark" for Section 5 Preclearance Purposes

Creating a non-retrogressive plan that would receive preclearance was no easy task. In fact, the Board's VRA expert, Dr. Lisa Handley, with three decades of experience, advised that she had never seen a VRA situation like that faced by the Board and that "meeting the benchmark was going to be complicated."[2] [Bd. Exc. 1111.]

There are two components to whether a plan meets Section 5 of the VRA: (1) whether the plan is free of discriminatory purposes, and (2) whether the plan will not have a retrogressive effect. Guidance Concerning Redistricting Under Section 5 of the

[2] The Plaintiffs' own VRA expert, Dr. Arrington, agreed with Dr. Handley's assessment of the difficulty faced by the Board in complying with Section 5 of the VRA. [Bd. Exc. 1257-1258.] Further complicating matters was the fact that going into this redistricting cycle, it was unclear, even to VRA experts, exactly what position DOJ would take regarding the U.S. Supreme Court's decision in *Bartlett v. Strickland*, 556 U.S. 1 (2009). In that case, the Supreme Court held in a 5-4 plurality opinion that Section 2 of the Voting Rights Act does not require the drawing of a minority district in which the minority group is less than 50 percent of the district's voting age population. *Id.* at 3. The effects of *Bartlett* on Section 5 preclearance, in light of the 2006 amendments to the VRA emphasizing the "ability to elect" standard, was both confusing and potentially conflicting. This was particularly true in light of Justice Kennedy's caution that *Bartlett* did not apply to an intent analysis. *Id.*

Voting Rights Act, Fed. Reg. Vol. 76, No. 27 (February 9, 2011), pg. 7471 ("DOJ Guidelines").[3] The DOJ analyzes whether a plan will have a retrogressive effect by comparing the proposed plan to the benchmark to determine whether minorities did, and still do, have the ability to elect their candidate of choice. *Id.* The Benchmark Plan is the current legislative plan populated with the 2010 census data. *Id.* [Bd. Exc. 1076.] In measuring the Benchmark, DOJ looks not only at whether a proposed redistricting plan contains the same number of minority election districts, but also whether there has been any significant decrease in the percentage of minority voters within those districts. [Bd. Exc. 1078, 1080, 1086; TT 774:4-18, 880:2-9.] The DOJ does not rely on any "predetermined or fixed demographic percentages at any point in the assessment." *Id.* at 7471.

The Benchmark for this redistricting cycle was nine (9) Alaska Native Districts consisting of five (5) effective House districts, three (3) effective Senate districts, and one (1) influence district (HD5 in Southeast). [Jt. Exc. 104.] Those districts had the following Alaska Native demographics:

House District	Location	% AK Nat. Population	% AK Nat. Voting Age Pop.
5	Southeast Alaska	38.18	35.14
6	Interior Villages	53.64	49.97
37	Aleutian Islands	45.04	37.79
38	Bethel	86.94	82.67
39	Bering Strait	87.74	83.44
40	North Slope	71.95	63.60

[3] A copy of the DOJ Guidelines can be found at Bd. Exc. 1003-1007.

Senate District	House Pairing Senate District	% AK Nat. Population	% AK Nat. Voting Age Pop.
C	Districts 5 & 6	46.01	42.41
S	Districts 37 & 38	66.56	58.32
T	Districts 39 & 40	79.40	72.38

[Bd. Exc. 1001-1002; 1076-1077.]

The Benchmark numbers establish that the Board inherited a situation where the Benchmark districts had concentrations of Alaska Natives far beyond the numbers necessary to create an effective district. [*Id.*] This was obviously due to the fact that Alaska's Native population has historically been geographically concentrated in rural areas of the State.[4] [Bd. Exc. 1087-1095.]

C. Demographic Challenges Faced by the Board Made Compliance with the VRA Extraordinarily Difficult

Demographic changes during the past decade made the 2011 redistricting process especially difficult, particularly as it related to creating a non-retrogressive plan that complied with Section 5 of the VRA. Such factors included the (a) under population of Benchmark Alaska Native districts; (b) lack of Alaska Native population concentrations

[4] This geographic fact has been reflected in previous redistricting plans approved by this Court. For example, the 2002 redistricting plan had Alaska Native districts with populations far in excess of the 35% Alaska Native VAP "necessary" to create an effective Alaska Native district at that time. The 2002 plan had House districts with total Alaska Native VAPs of (1) 81.13% (HD-38); (2) 79.72% (HD-39); (3) 73.05% (HD-40); (4) 51.67% (HD-6); and (5) 38.63% (HD-37). [Bd. Exc. 1002.] The Senate districts had total Alaska Native VAPs of (1) 76.41% (SD-T); (2) 57.54% (SD-S); and 42.45% (SD-C). [Bd. Exc. 1001.] In at least four election districts, the 2002 plan created Native districts with higher percentages of Alaska Native VAP than the 2002 Benchmark. Two House districts had a Native VAP that was 8.03% and 5.34% higher than the comparable 2002 Benchmark districts. Two Senate districts had Alaska Native VAP that was 6.6% and 2.23% higher than the comparable 2002 Benchmark.

adjacent to the Benchmark Alaska Native districts; (c) inability to create minority districts in urban Alaska; and (d) the increase in racially polarized voting in Alaska, requiring a higher average of minimum Alaska Native VAP needed to create an effective district. [Bd. Exc. 1072-1075; 1078-1079.]

1. Substantial Under-Population of Benchmark Alaska Native Districts

Historically, Alaska's Native population has been principally located in rural areas. At the time of statehood in 1959, 70% of Alaska's indigenous population resided in rural, predominately Alaska Native villages and towns. [Bd. Exc. 1237.] By 2000, that number had dropped to approximately 57%. [*Id.*] In the past decade, this "out-migration" accelerated as Alaska experienced a growing shift in population from rural to urban areas. [*Id.*] Thus, while the Alaska Native population as a whole grew slightly in the last decade from 19% to 19.3% of Alaska's total population, most of that growth took place in the five largest urban boroughs. [Bd. Exc. 1078.]

In conjunction with this out-migration from rural to urban areas, Alaska Native rural areas had either a slow or negative growth rate resulting in huge population deviations (ranging from -9.57% to -22.02%) in all but one of the current Alaska Native House districts.[5] [Bd. Exc. 1001-1002, 1079.] As of 2010, nearly 50% of the Alaska

[5] The population deviations for the nine benchmark districts were as indicated below:

House District	Total Population	Deviation from Ideal Population (17755)	Percent Deviation from Ideal
5	13,846	-3,910	-22.0%
6	14,235	-3,521	-19.8%
37	15,199	-2,557	-14.4%
38	16,055	-1,701	-9.6%

Native VAP presently resides in the five largest "urban" areas of the state. [Bd. Exc. 1078.] This meant that the five rural Alaska Native districts were short a total of 10,133 people from the ideal population – approximately 57% of an ideal House district. [Bd. Exc. 1085.]

2. Lack of Alaska Native Population Concentrations Adjacent to the Benchmark Alaska Native Districts

The slower growth rate and out-migration of Alaska Natives from rural to urban areas left five of the six Benchmark House districts with substantial Alaska Native populations significantly under-populated. [Bd. Exc. 1079, 1237.] The Board could not make up for these population disparities without adding substantial non-Alaska Native population. There were no concentrations of Alaska Native populations adjacent to those districts, and there were only two areas with substantial Alaska Native concentrations that did not fall within the boundaries of a benchmark minority district. Both of these areas were included in the Proclamation Plan's Alaska Native districts. [*Id.*]

The population in those two areas, however, was very small. Accordingly, in order to properly populate the Alaska Native districts, the Board had to include population from more urban areas of the state. However, it was not feasible to add Alaska Natives from

39	15,642	-2,114	-11.9%
40	17,516	-240	-1.4%
Senate District	**Total Population**	**Deviation from Ideal Population (35510)**	**Percent Deviation from Ideal**
C	28,081	-7,429	-20.9%
S	31,254	-4,256	-12.0%
T	33,158	-2,352	-6.6%

[Bd. Exc. 1001-1002, 1079.]

urban areas to rural Alaska Native districts without also adding non-Alaska Native population percentages, possibly causing retrogression, due to the lack of geographic concentration of Alaska Natives in urban areas.

As a result, non-Alaska Native population from urban areas had to be added in order to increase the population of the under-populated Alaska Native districts in order to meet the one-person/one-vote standard and avoid retrogression. [Jt. Exc. 129.] "It was not a matter of whether excess population needed to be added to rural Native districts but only a matter of where to access this excess urban population." [Jt. Exc. 129; s*ee also* Bd. Exc. 1085, 1135-1136.] Every third party plan submitted to the Board contained at least one district that combined urban with rural population in an Alaska Native district. Several of these plans took population from the Fairbanks North Star Borough "FNSB" and added it to rural Alaska Native populations. [Jt. Exc. 129; Bd. Exc. 1023-1055; BR 745-764, 3990-4185, 4186-4321, 4410-4543, 5186-5274, 5324-5363.]

3. Inability to Create Minority Districts in Urban Areas

Although nearly 50% of Alaska Natives live in the state's five largest urban areas, the creation of "effective" districts in urban areas proved impossible despite considerable efforts by the Board and its staff. [Bd. Exc. 1079, 1091-1095.] The Alaska Native population in the urban areas is simply not sufficiently geographically compact enough to allow for the creation of any such districts. [*Id.*]

4. Increase in Racially Polarized Voting Raised the Minimum Alaska Native VAP Percentage Needed for an Effective District

Because Alaska is covered by Section 5 of the VRA, the state is required to submit

its redistricting plan to either the Department of Justice or the Federal District Court for the District of Columbia for preclearance before that plan can be implemented. [Bd. Exc. 1057; 1231.] In order to facilitate preclearance, the Board retained Dr. Lisa Handley to perform a racial bloc voting ("RBV") election analysis for this redistricting cycle. [Bd. Exc. 1056-1075.] Her analysis found that voting in Alaska had become more racially polarized[6] over the past decade (2002-2010). [Bd. Exc. 1072.] She reported to the Board on May 17, 2011, that the overall statewide minimum percentage needed to create an "effective" Alaska Native district had increased from 35% Alaska Native VAP to 41.8%, or 42%, Alaska Native VAP. [Bd. Exc. 1072-1074.]

Dr. Handley also found that a more district-specific analysis was warranted in two areas: Benchmark House Districts 37 and 6. Because there was less polarized voting in Benchmark District 37, it consistently elected minority-preferred candidates despite having less than 41.8% Alaska Native VAP. [Bd. Exc. 1074-1075.] On the other hand, Benchmark House District 6, which is well over 41.8% Alaska Native VAP, failed to elect the Alaska Native preferred candidate in the 2010 election due to higher incidents of racially polarized voting and lower than statewide average of white crossover vote. [*Id.*] Dr. Handley's analysis found that a minimum of 49.7% Alaska Native VAP was needed

[6] An election is racially polarized if minorities, in this case Alaska Natives, and whites, considered separately would have elected different candidates. [Bd. Exc. 1057.] An RBV analysis conducted over a series of elections (usually the past decade) can be used to calculate the average minimum minority voting age population percentage needed to elect a minority-preferred candidate. This is accomplished by accounting for the average turnout rates for white and minority voters, "minority cohesiveness," an expected minority vote for minority-preferred candidates, and "crossover vote," an expected white vote for the minority preferred candidate. [Bd. Exc. 1072.]

in Benchmark House District 6 in order to offer Alaska Natives the ability to elect their candidates of choice. [*Id.*]

D. Creating a Non-Retrogressive Plan that Complied with Section 5

The challenges outlined above made creating a redistricting plan that protected Alaska Native voting strength against any decrease from that in the Benchmark Plan no easy task. The significant demographic changes of rural Alaska made it extremely difficult to meet the one-person/one-vote standard while still maintaining the required percentage of Alaska Native VAP in the required number of minority districts. [Bd. Exc. 1134-1136, 1237-1238.] This problem was exasperated by the increase in the percentage of Alaska Native VAP required to create an effective Alaska Native district. [Bd. Exc. 1236-1238.] Based on significant public testimony, including testimony from Alaska Native legislators and leaders, the Board was encouraged to think "outside-the-box" to ensure it avoided retrogression. [Jt. Exc. 121 n.193; Bd. Exc. 1132.] As a result, the Board felt compelled to reconfigure the traditional boundaries of the Alaska Native districts and encouraged parties submitting alternative plans to do so as well.

In light of Dr. Handley's RBV analysis, the Board invited all groups that had previously submitted plans for the configuration of Alaska Native districts to participate in a public work session on May 24, 2011, at the Board's office in Anchorage. [Jt. Exc. 25; Bd. Exc. 1280.] The purpose of the work session was to provide these groups the opportunity to present any final thoughts, ideas, revisions, or amendments to their plans. [Bd. Exc. 1280.] A number of groups responded to the invitation and made formal presentations to the Board. [*Id.*]

The Board took "a hard look at difficult plan alternatives" and carefully considered these various alternative plans. [Jt. Exc. 10.] A review of those plans highlights the difficulty of creating a plan with Alaska Native population percentages comparable to those in the Benchmark Plan. Dr. Handley reviewed all nine of the alternative plans submitted after the completion of her RBV analysis, and found all of them to be retrogressive. [Bd. Exc. 1080-1083.] None of the plans provide both five "effective" House districts and three "effective" Senate districts,[7] which Dr. Handley determined was the benchmark standard. [Jt. Exc. 104; Bd. Exc. 1084-1086.]

Despite the difficulty, the Board eventually came up with several options in an attempt to meet the VRA requirements led by the efforts of Board members PeggyAnn McConnochie and Marie Green, an Alaska Native. [Bd. Exc. 1281.] One staff plan, referred to as the TB Plan, took the unique approach of changing the historical composition of District 40 (even though it was only -1.35% from the ideal district size) by dividing the North Slope Borough and the Arctic Northwest Borough into separate districts, and picking up population from more urban areas in and around Fairbanks and along the southeast border of the state. [Jt. Exc. 125 n.204.]

Although Dr. Handley advised the Board that the TB Plan may not be retrogressive strictly by the numbers, the plan had a number of problems including whether the new District 40 would be an "effective" Native district as well as the pairing

[7] Every third party plan also created an Alaska Native "influence" district in Southeast Alaska. The Board did so as well, based on the advice of Dr. Handley. [Jt. Exc. 158 n. 25.]

of Alaska Native incumbents.[8] [Jt. Exc. 125, n.204.] The TB plan also received overwhelming criticism from Alaska Native groups who felt that due to low voter registration and turn out on the North Slope, the new proposed North Slope District would most likely not be effective. [*Id.*] If the Board had adopted the TB Plan, Alaska Native Groups and leaders would have filed objections with the DOJ, thereby seriously jeopardizing Alaska's chances for preclearance. [*Id.;* TT 214:9-14, 16-18; 215:1-6; 216:15-17; 220:8-24; 224:8-12; 226:8-12; 239:14-19; 571:2-573:6; 575:18-21; 704:1-706:2; 9:18:3-9, 18-23; 924:17-926:2; 947:10-14.]

A second Alaska Native district plan know as the PAME Bethel/Kodiak plan was created by Board members McConnochie and Green with input from staff and other Board members, and was adopted unanimously in concept by the Board. [Jt. Exc. 125, n.205; TT 216:23-217:5, 19-220:4; 222:13-15; 226:13-16; 573:23-577:19; 577:24-578:3, 12-579:2; 691:8-15; 706:3-6.] Dr. Handley also reviewed this plan and advised the Board that by the numbers, it was likely not retrogressive. [Jt. Exc. 125 n.205.]

This plan, however, included a Senate district which combined Kodiak with

---

[8] The Board was aware that the effect on Alaska Native incumbents of any plan it adopted was of concern for the DOJ when reviewing submissions for preclearance under Section 5 of the VRA. [Bd. Exc. 1295.] The Board also knew the DOJ would pay particular attention to the public comments the Board received from Alaska Natives, whether they approved or disapproved of the plan, and whether or not the Board took Alaska Native concerns into consideration when drawing the plan. 28 C.F.R. § 51.57-51.59. As a result, the Board actively sought input from the Alaska Native community throughout the redistricting process and took their concerns into account when drafting election districts. [Bd. Exc. 1295.] At trial, Dr. Handley testified even though the TB Plan was not retrogressive by the numbers, it might still have not passed VRA review because the Alaska Natives did not like it. [TT 918:3-9, 18-23; 924:17-926:2; 947:10-14.]

Bethel, thereby pairing one of the most powerful Alaska Native incumbent members of the Senate, Lyman Hoffman, with the current Senate president, Gary Stevens. [Jt. Exc. 125 n.205.] This pairing was severely criticized by Alaska Native groups in both the Bethel and Kodiak areas. The Calista Corporation in particular notified the Board of its serious objections to this pairing and even suggested the Board split the Aleutians if necessary to prevent it. [*Id.*; Bd. Exc. 1121.] Board member Green was also very uncomfortable with the effect this pairing would have. The Board was very concerned, as with the TB Plan, that objections by Alaska Native Groups and leaders would have seriously jeopardized its ability to obtain preclearance. [*Id.*]

As a result, Board members McConnochie and Green went back to the drawing board and created a third plan that did not face the same challenges as the TB and PAME Plan. [Bd. Exc. 1240.] Although this plan split the Aleutians,[9] it met the VRA requirements without the offensive Senate pairing. Dr. Handley analyzed this plan and determined that it would not diminish the ability of Alaska Natives to elect their candidates of choice as compared to the Benchmark plan. The Board ultimately adopted the Greene/McConnochie Alaska Native districts into its Proclamation Plan by a unanimous 5-0 vote on June 6, 2011. [*Id.*]

E. The Proclamation Plan

The configuration of the Benchmark House Plan had to change substantially in order to maintain the requisite number of minority districts and still meet the one-

[9] The configuration of HD38 is exactly the same in the Proclamation Plan and the PAME Plan. [Bd. Exc. 1127; Jt. Exc. 220.]

person/one-vote standard. [Bd. Ex. 1084; 1240-1241.] Although the Proclamation House Plan retains the North Slope district more or less intact, it was necessary to unpack the two heavily Alaska Native House districts, Benchmark Districts 38 and 39, and disperse this Alaska Native population to provide enough minority voters in other Alaska Native districts to avoid retrogression. [*Id.*; TT 919:10-920:8.] For example, a large portion of Benchmark District 39 was combined with many of the interior villages from Benchmark District 6 to produce Proclamation District 39, with a 67.09% Native VAP. The remainder of Benchmark District 39 was placed in Proclamation District 38, which was drawn east towards Fairbanks to pick up sufficient additional population from the communities of Ester and Goldstream to meet the one-person/one-vote standard, while still maintaining an effective district. This reduced the number of majority minority districts by VAP from four under the benchmark plan to three under the Proclamation Plan. [Bd. Exc. 1240-1241.]

Indeed, Dr. Handley was particularly concerned with decreasing the Alaska Native VAP in the Alaska Native districts to the point where some districts were going to be less than a majority Alaska Native, even though such decrease was unavoidable. [TT 773:24-774:18; 812:3-7; 879:23-880:9; 919:10-920:8; 950:3-22.] She knew the DOJ would be looking at a benchmark plan with at least four majority Alaska Native VAP House districts and the Board was going to be seeking preclearance of a plan with only three. [*Id.*] Thus, she advised the Board to make absolutely sure the Alaska Native districts were as close to majority Alaska Native as possible, even if a lower Alaska Native VAP might make it effective. [*Id.*] She expressly advised that "the higher the percentage

Native in proposed [districts], the more likely you are to avoid a decision that the plan is retrogressive." [Bd. Exc. 1107.] She testified "she would have been remiss in her duties" had she not advised the Board to keep the Alaska Native VAP numbers as high as possible. [TT 950:17-22.] For she felt very strongly "the highest you could get those majority/minority numbers, the better you would be...," and even insisted the Board draw the Alaska Native districts over 42% where possible. [TT 880:7-9; 924:8-9.] In her final report to the DOJ, Dr. Handley specifically explained why the Board had to decrease the Alaska Native VAP in nearly all of its effective districts from the benchmark VAP in order to justify the Board's actions. [Bd. Exc. 1084-1086.]

When creating HD38, the Board chose to pick up the population from the Goldstream and Ester areas of the FNSB in order to bring the overall population of House District 38 within constitutional tolerance for a number of reasons. First, the FNSB had excess population to give, just under half an ideal house seat, or approximately 8,700 people. [Bd. Exc. 1105-1106; TT 245:13-16; 374:5-12; 383:20-23; 446:14-16; 714:20-715:6; 602:20-603:1.] Second, Fairbanks had some historical economic, cultural, and social ties to rural Native Alaska. [Bd. Exc. 1109; TT 521:21-522:7; 603:6-19.] Third, its geographic location made it relatively proximate to the rural districts. Fourth, and most importantly, the FNSB had areas with historical Democratic voting patterns which were crucial. [Bd. Exc. 1085, 1117; 1241; TT 382:5-21; 400:4-25; 434:14; 435:2-8; 603:23-604:5.]

Dr. Handley had advised the Board that if urban, non-Alaska Native population had to be added to rural Alaska Native districts, the urban non-Alaska Native population

should be from areas that tend to vote Democratic. [Jt. Ex. 131; Bd. Exc. 1085, 1117; TT 200:23-201:17; 209:6-7; 382:5-21; 603:23-604:5; 718:1-3.] She explained this was important because the Alaska Native's preferred political party is the Democratic Party, and by adding Democratic-voting, non-Alaska Native population, the Board would enhance the effectiveness of that district not only because Alaska Natives tend to vote Democratic, but also due to the expected increased white cross-over vote. [*Id.*][10] The Trial Court found that "the Board acted reasonably when it selected Fairbanks, and specifically Ester/Goldstream, as an area from which to take excess population." [Jt. Exc. 132.]

F. Preclearance Submission

As required by the VRA, the Board submitted its preclearance submission to the Department of Justice on August 9, 2011. [Bd. Exc. 1230-1247; BR 6356-11791.] The submission contained nine volumes and 44 folders of information, totaling more than 5,400 pages of documentation. [*Id.*] Based on the advice of its consultants, the Board scheduled a meeting with the DOJ staff assigned to review and analyze Alaska's redistricting plan to answer any questions the DOJ might have about the Proclamation Plan. [Bd. Exc. 1287-1288.]

[10] At trial, Dr. Handley further explained that based on her analysis of Alaska Native voting patterns undertaken as part of her RBV analysis, Alaska Natives overwhelmingly vote Democratic. [Jt. Exc. 131; TT 795:23-796:3, 11-14, 23-25; 797:6-8; 848:8-9, 21-22; 849:16-19; 857:18-22.] The Plaintiffs' own Voting Rights Act expert, Dr. Arrington, testified that he completely agreed with Dr. Handley's analysis and reasoning that when adding urban population to rural Alaska Native Districts "you would want to add Democrats" because adding Democrats potentially increases the effectiveness of the district. [Jt. Exc. 132; Bd. Exc. 1260-1264.]

On September 14, 2011, Board members John Torgerson and Marie Greene, along with Executive Director Taylor Bickford and Board legal counsel Michael White, met with representatives from the DOJ in Washington, DC. Chairman Torgerson presented a presentation explaining the Board's preclearance submission and advocating for preclearance. [Jt. Exc. 124; TT 236:10-239:19; 593:14-595:15.] The only substantive question the DOJ representatives asked the Board members at that meeting was how Alaska Native incumbents were treated. [*Id.*] On October 11, 2011, the DOJ precleared the Board's plan. [Bd. Exc. 1254.]

STANDARD OF REVIEW

This Court gives no weight to the decision of the Trial Court on review of a redistricting plan. *Groh v. Egan*, 526 P.2d 863, 867 (Alaska 1974). Instead, this Court has indicated that it will review the plan *de novo* upon the record developed in the Superior Court. *Id.*

With respect to the plan itself, this Court follows an administrative law standard of review. *Id.* at 866. Thus, a plan is reviewed to determine whether the plan is reasonable and not arbitrary. *Id.*; *Kenai Peninsula Borough v. State*, 743 P.2d 1352, 1357-58 (Alaska 1987). The Board has the constitutional authority to reapportion Alaska's election districts, not the courts. *Groh,* 526 P.2d at 866; *see also Braun v. Borough*, 193 P.3d 719, 726 (Alaska 2008). As such, the Board has discretion in choosing its plan with which "the court will not lightly interfere . . . ." *In re 2001 Redistricting Cases*, 44 P.3d 141, 149 (Alaska 2002) (Carpeneti, J., dissenting); *Braun v. Borough*, 193 P.3d at 726. While this Court has the authority to ensure the Board's choices did not violate the

constitution, they cannot substitute their independent judgment for that of the Board. *Kenai Peninsula Borough,* 743 P.2d at 1357-1358. Moreover, this Court does not have the constitutional authority to decide what is preferable between alternative rational plans for redistricting. *In re 2001 Redistricting Cases*, 44 P.3d at 149 (Carpeneti, J., dissenting).

STATEMENT OF GROUNDS WHY DECISIONS BELOW ARE ERRONEOUS

A. House District 38 Was Necessitated by the Board's Need to Create a Non-Retrogressive Plan that Complied with Section 5 of the Federal Voting Rights Act.

Despite finding (1) the Board "had to add urban population to rural Alaska Native district in order to meet the one-person/one-vote standard and avoid retrogression" [Jt. Exc. 129], (2) "[i]t was not a matter of whether excess population needed to be added to rural Native districts but only a matter of where to access this excess urban population" [*Id.*], (3) residents from the Ester/Goldstream areas of the FNSB "had to be included in Proclamation House District 38 for purposes of complying with the federal VRA" [*Id.* at 110, 111], and (4) the Board "acted reasonably when it selected Fairbanks, and specifically the Ester/Goldstream, as an area from which to take excess population" [*Id.* at 132; *see also* Jt. Exc. 94], the Trial Court still somehow concluded that the Board's failure to strictly comply with the socio-economic integration requirement of Article VI, Section 6 was "not necessary" in order to comply with the VRA.[11] [*Id.* at 132-33.] The

[11] The Trial Court's three sentence rationale was two fold. First, it reasoned that it could not conclude that "this configuration of Native districts is in harmony with the Alaska Constitution when all of them have more Native VAP than necessary." [Jt. Exc. 132-133.] Second, it found that the configuration of HD38 "was obviously influenced by the

Trial Court's decision is erroneous as it misconstrues the requirements of the VRA, ignores both geographic and demographic realities, and is irreconcilable with the Trial Court's own factual findings and legal conclusions.

1. The Trial Court Erroneously Ruled the Alaska Native VAP in the Alaska Native Districts is Higher Than is Necessary under the VRA.

The fact that all the Alaska Native Districts in the Proclamation Plan have more than 42% Native VAP (the average minimum Native VAP target percentage for an effective district) does not, as the Trial Court erroneously concludes, mean that the configuration of HD38 was not justified by the Board's need to comply with the VRA. While not exactly clear, the Trial Court appears to erroneously equate the minimum "effectiveness target" of 42% Native VAP as the talisman for retrogression analysis and compliance with Section 5 of the VRA. Under the Trial Court's "single-factor" test, departure from strict adherence to the Alaska Constitution's requirements of Article VI, Section 6 can never be justified or made "necessary" by compliance with the VRA unless all of the Alaska Native districts are drawn at or near the minimum 42% "effectiveness target." The Trial Court's rationale is fundamentally flawed for a myriad of reasons.

a. The Trial Court Misconstrued the Standards and Requirements of Section 5 of the VRA.

The Trial Court's rationale misinterprets or ignores the fundamental purpose of the VRA: to protect minority voters' opportunity to meaningfully participate in the

---

decision to not pair Senator Hoffman" which the Court claims is "too speculative." [*Id.* at 133.] Based on these rationales, the Trial Court found that HD38 "is not in harmony with the Alaska Constitution and must be remanded to the Board." [*Id.*]

electoral process. *Georgia v. Ashcroft*, 539 US 461, 490 (2003). If accepted, the Trial Court's rationale would mandate that in order to pass muster under the Alaska Constitution, the current, and all future redistricting boards, must create redistricting plans that provide Alaska Natives with the bare minimum Native VAP to potentially elect their preferred candidates of choice. Such a standard eviscerates the protections afforded to Alaska Natives under the VRA, and mortally jeopardizes Alaska's ability to ever obtain preclearance from the DOJ.

The federal Voting Rights Act of 1965 was intended to protect the voting power of racial minorities. [Jt. Exc. 43-44.] Section 5 requires covered jurisdictions, such as Alaska, to prove their voting changes have "neither...the purpose nor will have the effect of denying or abridging the right to vote on account race, color," or membership in a language minority. 42 U.S.C. § 1973c. A redistricting plan satisfies the effect prong if the electoral change does not lead to retrogression in minority voting strength. *Beer v. United States*, 425 U.S. 125, 141 (1976); DOJ Guidelines at 7470. The DOJ, who reviews voting changes for compliance with Section 5, measures retrogression by comparing "minority voting strength" under the new plan in its entirety with the with "minority voting strength" under the immediately preceding, or "benchmark" plan. DOJ Guidelines at 7470-7471. The DOJ also examines all the circumstances surrounding the adoption of the redistricting plan "to determine whether direct or circumstantial evidence exists of any discriminatory purpose." *Id.* at 7471.

In measuring the "Benchmark" for purposes of discriminatory effect, the DOJ's retrogression analysis looks not only at whether a proposed redistricting plan contains the

same number of minority election districts, but also whether there has been any significant decrease (or increase) in the percentage of minority voters within those districts. [Bd. Exc. 1078, 1080, 1086; TT 774:4-18; 880:2-9.] In fact, the DOJ Section 5 redistricting guidelines make clear that its analysis "does ***not*** rely on any predetermined or fixed demographic percentages at any point in the assessment" when "determining whether the ability to elect exists in the benchmark and whether it continues in the proposed plan." DOJ Guidelines at 7471 (emphasis added).

Compliance with the VRA is more an art than a science. [Bd. Exc. 1100.] The "effectiveness target" is simply one of the factors DOJ considers in performing its retrogression analysis. A proposed plan is reviewed in its entirety, not just by the numbers. DOJ Guidelines at 7471. The "effectiveness target" is really nothing more than a best "educated guess" based on a statistical analysis. It is the minimum Alaska Native VAP that should provide Alaska Natives with the ability to elect their candidate of choice. [Bd. Exc. 1074.] It is not, as the Trial Court suggests, the exclusive standard by which retrogression is measured, nor a "bright line" test for "necessity."

As to HD38 itself, Dr. Handley testified that in order for it be effective, it needed to be higher than 42% Alaska Native VAP but not as high as 50% because even though it contained portions of Benchmark HD6, it did not contain the non-Alaska Native villages that were not voting for the minority-preferred candidate. [TT 898:8-15.] She didn't know the exact number, but she knew "we don't want the district to go much below 46 percent." [TT 898:20-23.] The Plaintiffs' own VRA expert, Dr. Arrington, agreed with Dr. Handley's advice, testifying that for HD 38 "46.4 seems to me perfectly reasonable,"

and "that's where I would draw the district...." [TT 59:7-19.] HD38 has an Alaska Native VAP of 46.36%. [Bd. Exc. 1145.]

It was completely reasonable for the Board to heed the advice of its VRA expert and construct a redistricting plan that provided the best opportunity to obtain preclearance. Faced with conflicting and often confusing legal standards, as well as the burden of establishing that its Proclamation Plan had neither discriminatory intent nor effect in order to obtain preclearance, all of which had to be done in a sixty day time period, it was crucial that the Board present as strong a plan as possible to DOJ.[12] Under the Trial Court's rationale, the Board would be forced to draw Alaska Native districts that provide Alaska Natives with the bare minimum probability of success before it could justify departure from strict adherence to the requirements of the Alaska Constitution. Such is not and never has been the law.

b. The Trial Court's Rationale is Based on a Misinterpretation of *Hickel v. Southeast Conference.*

The Trial Court's "more Native VAP than necessary" rationale is based primarily on its misreading of this Court's decision in *Hickel v. Southeast Conference*, 846 P.2d 38 (Alaska 1992). According to the Trial Court, the configuration of HD38 which has an Alaska Native VAP of 46.36% was not justified by the Board's need to comply with the VRA because "the *Hickel* court found that an extra 2% Native VAP meant that the configuration of a district was not necessary under the VRA and could not overcome the

[12] The Plaintiffs' own VRA expert, Dr. Arrington, agreed that when seeking preclearance from DOJ you want to present the strongest plan. [Bd. Exc. 1271:22 – 1272:5; TT 87:13-20.]

violations of the Alaska Constitution in the areas of socio-economic integration and compactness."[13] [Jt. Exc. 123.] The Trial Court's interpretation of *Hickel* is misplaced.

In *Hickel,* the redistricting Board attempted to justify the configuration of an Alaska Native influence district in Southeast that the trial court found was "not socio-economically integrated" and "easily could have been," based on the VRA. *Hickel*, 846 P.2d at 50. In affirming the trial court's decision on appeal, this Court held:

> The proposed configuration of District 3[14] raised the Native percentage of the district two percentage points *compared to the old "Islands District."* However, such an awkward reapportionment of the Southeast Native population was not necessary for compliance with the Voting Rights Act. An "Island" District can be configured which satisfies the requirements of the Voting Rights Act and which is more compact and better integrated socially.

Id. at 51-52 (emphasis added, footnotes omitted).

Review of the actual language from *Hickel,* reveals the two percentage point increase the *Hickel* court was concerned with was an increase in Native VAP from the benchmark "old island district," not a two percent increase over the "effectiveness target." 846 P.2d at 51-52. These two numbers are completely different for purposes of VRA compliance. The benchmark number is the percentage Native VAP in the old

---

[13] Although the Trial Court discussed the *Hickel* rationale in its decision related to HD37, it also specifically held that "the configuration of Proclamation House District 38 is not necessary under the VRA for the same reasons the configuration of Proclamation House District 37 is not necessary under the VRA." [Jt. Exc. 132.]

[14] HD3 in *Hickel* separated the downtowns of Ketchikan and Sitka from the rest of the cities and combined those urban areas of Sitka and Ketchikan with small, rural Native communities, as well as split the two closely related cities of Saxman and Ketchikan. 846 P.2d at 51-52.

district with the current census numbers. DOJ Guidelines at 7471. [*See also* Bd. Exc. 1076.] The "effectiveness target" is the estimated lowest Alaska Native VAP percentage that can be put in an election district and still argue that it is effective.

Unlike the Board in *Hickel*, this Board actually had to decrease the Alaska Native VAP in the Benchmark districts across the State. [Bd. Exc. 1084-1085, 1086; TT 919:10-920:8.] The Benchmark has Alaska Native House districts with Native VAP of 83.44%, 82.67%, 63.60%, 49.97%, and 37.79%. [Bd. Exc. 1077.] The Proclamation Plan, on the other hand, has Alaska Native House districts with 71.45%, 67.09%, 62.22%, 46.63%, and 46.36% Alaska Native VAP. [Bd. Exc. 1145.][15] In order to maintain the requisite number of Alaska Native districts, the Board had to both unpack and disperse the heavily Alaska Native populated districts as well as add non-Native population from an urban area in order to achieve deviations within tolerance of the federal equal protection requirement of one-person/one-vote. [Jt. Exc. 129-30; Bd. Exc. 1001-1002, 1084, 1086, 1145, 1240-1241.]

The major difficulty in creating a non-retrogressive plan was not finding enough Alaska Native VAP to populate five effective House and three effective Senate districts. Rather, it was finding enough population to meet the one-person/one-vote standard while

[15] By comparison, the 2002 redistricting plan approved by this Court had Alaska Native House Districts with Native VAP of 85.36%, 84.82%, 79.39%, 54.53%, and 47.28%. [Bd. Exc. 1002.] In at least four election districts, the 2002 plan created Native districts with higher percentages of Alaska Native VAP than the 2002 Benchmark. Two House districts had a Native VAP that was 8.03% and 5.34% higher than the comparable 2002 Benchmark districts. Two Senate districts had Alaska Native VAP that was 6.6% and 2.23% higher than the comparable 2002 Benchmark.

still creating a non-retrogressive plan that did the least harm possible to the Alaska Constitution. This is exactly what the Board did in its configuration of HD38.

While the Board admittedly was required to depart from strict adherence to the relatively socio-economic integration requirement of Article VI, Section 6 in its configuration of HD38, it made considerable efforts to minimize that departure. The Trial Court expressly found it was undisputed that "the Board had to add urban population to a rural Alaska Native district in order to meet the one-person/one-vote standard and avoid retrogression." [Jt. Exc. 129.] It was not a matter of if, only a matter of where. [*Id.*] One of the main reasons the Board decided to take urban population from the Fairbanks area was its "historical, economic, cultural and social ties between Fairbanks and rural Native Alaska." [Jt. Exc. 130.] As the Trial Court itself noted, "[a]nyone would be hard pressed to assert Fairbanks is not a hub for rural Alaska." [Jt. Exc. 130 n.224.][16] Thus, unlike HD3 in *Hickel*, the configuration of HD38 cannot be described as "awkward."

Additionally, the *Hickel* Court made clear that it was possible to configure an "Island District" which was more compact and better integrated that still complied with the VRA. Such is not the case here. As explained in further detail below, it is impossible to create a non-retrogressive plan that complies with Section 5 of the VRA and strictly complies with all the requirements of the Alaska Constitution. [TT 201:18-23; 252:12-17; 402:18-403:16; 406:3-9.] Every plan either created by the Board or presented to the

[16] The Trial Court also noted that Fairbanks is the seat of the Fourth Judicial District which encompasses all of HD38 "and more." [Jt. Exc. 130 n.224.]

Board by private parties not only contained "at least one district that combined urban population with an Alaska Native District" [Jt. Exc. 130 & n.222], but also contained several districts whose configuration is either not compact, relatively socioeconomically integrated, or both. [*See* Jt. Exc. 215-233.]

In short, the Trial Court incorrectly interpreted *Hickel.* A proper reading of *Hickel* does not support the Trial Court's "more Native VAP than necessary" rationale for its decision that the configuration of HD38 was not "necessary" in order to comply with the VRA. The Trial Court's decision on HD38 was erroneous and must be reversed.

c. The Trial Court's Rationale Has Been Rejected by at Least One Federal Court.

In *State of Texas v. United States, et al.*, the Texas legislature, responsible for redistricting in Texas, attempted to use the same "single-factor" test approach taken by the Trial Court to satisfy Section 5 of the VRA. __ F. Supp 2d. __, 2011 WL 6440006, D.D.C., December 22, 2011 (No. CIV.A. 11-1303 TBG).[17]

In that case, the Texas legislature relied on minority VAP demographics alone to attempt to justify its redistricting plans, counting a district as an "ability to elect" (i.e. "effective") district based solely on whether it contained 40% Black VAP and 50% Hispanic VAP, ignoring all other factors. [Bd. Exc. 1336-1337.] The United States objected to this approach, arguing that a retrogression analysis requires a "multi-factored 'functional' analysis, which starts with an examination of voting-age population but also

[17] Plaintiffs filed a complete copy of *State of Texas v. United States, et al.,* as supplemental authority to their Trial Brief on January 4, 2012. A copy of this pleading with the attached case is included in the Board's Excerpt of the Record at 1324-1368.

analyzes additional factors." [*Id.* at 1337.]

In rejecting Texas' approach, the United States District Court for the District of Columbia held that "assessing retrogression is a complex, multifaceted, fact-specific inquiry," not a single-factor test. [*Id.* at 1349.] The Court found that "a simple voting-age population analysis cannot accurately measure minorities' ability to elect and, therefore, that Texas misjudged which districts offer its minority citizens the ability to elect their preferred candidates in both its benchmark and proposed Plans." [*Id.* at 1348-1349.] Relying upon the United States Supreme Court's Section 5 decisions, the DC Court noted that demographics alone cannot determine whether a district provides minorities with an effective exercise of the electoral franchise or diminishes such opportunity within the meaning of Section 5. [*Id.* 1351.]

Here, the Trial Court's rationale is effectively the same as that rejected by the DC Court. It must be rejected for the same reasons.

2. The Configuration of HD38 Was Not Influenced by the Board's Decision to Avoid Pairing Senator Lyman Hoffman.

The Trial Court's conclusion that the configuration of HD38 was also not justified by the Board's need to comply with the VRA "because it was obviously influenced by the decision to not pair Senator Hoffman, which the court already has discussed is too speculative" [Jt. Exc. 133] is simply incorrect and without any factual basis in the record.[18]

[18] The Trial Court's finding that the "two Board Plans that kept the Aleutians together" both paired Senator Hoffman is also wrong. The "TB Plan" paired another Alaska Native

The Board's decision not to pair Senator Hoffman affected the configuration of HD36 and HD37 in the Proclamation Plan, not HD38. [*Compare* Jt. Exc. 220 & Bd. Exc. 1127.] The configuration of HD38 (as well as HD39 and 40) is exactly the same in the PAME Plan and the Proclamation Plan. [*Id.*] Since the configuration of HD38 is exactly the same in the PAME plan and the Proclamation Plan, its configuration was obviously not influenced by the Board's decision to avoid pairing Senator Hoffman. Accordingly, that decision is irrelevant to and provides no support for the Trial Court's conclusion regarding HD38.

3. The Trial Court's Decision Creates an Unworkable Standard that Ignores Alaska's Demographics and Geography.

Under the Trial Court's rationale, in order to justify departure from strict compliance with the Alaska constitutional requirements of contiguity, compactness, and socio-economic integration, the Board must first create Alaska Native districts that contain the bare minimum Alaska Native VAP needed to create an effective district. The geographical and demographic realities of Alaska, however, make the Trial Court's "more Native VAP than necessary" rationale not only legally incorrect, but also completely unworkable. The Board already faces a daunting challenge in creating a non-retrogressive plan that properly balances all the competing legal requirements in the largest state with the lowest population density in the Union. The Trial Court's ruling makes its "Herculean" task impossible.

---

incumbent, Senator Donnie Olsen of Nome, with Senator Stevens, not Senator Hoffman. [Jt. Exc. 221.]

Demographically, the location of the Alaska Native and non-Native population in Alaska makes it impossible to comply with the Trial Court's ruling and state constitutional redistricting requirements. The Alaska Native VAP numbers in some of the effective districts are simply a result of demographic realities. The fact is more Alaska Natives live in the Northern, Western, and Interior Alaska than non-Natives. [Bd. Exc. 1087-1090.] In order to decrease the Alaska Native VAP in the rural Alaska Native districts, the Board would have to take more non-Native population out of urban areas. Not only would such configurations jeopardize the effectiveness of the Alaska Native districts and thus preclearance, but every such district would violate the state constitutional redistricting requirements.

Geographically, such districts would have to run from those areas of rural Alaska with high concentrations of Alaska Native population into the urban areas of Fairbanks and Southcentral Alaska. In order to create districts with enough non-Native population to reduce the Alaska Native VAP while still complying with the one-person/one-vote standard, districts would be bizarrely shaped districts connecting pockets of population with unpopulated corridors, all of which would run afoul of the constitutional compactness requirements. The Alaska redistricting map would essentially look like a "wagon wheel" with none of the districts likely to be socio-economically integrated. Just how such configurations would be "more in harmony" with the Alaska Constitution than the configuration of HD38 is hard to imagine.

It is also geographically and demographically impossible to strictly comply with the Alaska Constitution and draw a non-retrogressive plan. Every third party plan

contains districts whose configuration is justified by the need to comply with the VRA. An ocular review of the third party plans submitted to the Board proves this point.[19] [Jt. Exc. 215-233.] Moreover, if the five effective House districts can only have a maximum of 42% Alaska Native VAP, it would be impossible to create a third effective Senate district. A Senate district must be comprised of two contiguous House districts. Alaska Const. art. VI, sec. 6. The average of the two House districts combined to make an effective Senate districts requires at least 42% Alaska Native VAP. Under the benchmark, however, there only needs to be five effective House districts. [Jt. Exc. 104.] This means one effective House district must be combined with a non-effective House district that will have less than 42% Alaska Native VAP. In other words, the Trial Court's rationale creates a classic "Catch 22."

Even more confusing is the Trial Court's recognition that the Native VAP in HD36 is higher than required in order to create a third effective Senate seat, Senate District R. [Jt. Exc. 128 n.213; Bd. Exc. 1145, 1156-1157.] Yet the court ultimately found it "cannot conclude this configuration of Native districts is in harmony with the Alaska Constitution when all of [the Native districts] have more Native VAP than

[19] For example, the RIGHTS Coalition's "Fair and Balanced Plan" contains a district that runs from Nome to Valdez, clearly violating the compactness and socio-economic integration requirements of the Alaska Constitution. [Jt. Exc. 215.] AFFR submitted a plan that contains an Alaska Native district that runs from Bethel to Healy, clearly violating the socio-economic integration requirement of the Alaska Constitution. [Jt. Exc. 225.] The AFFR representative admitted this, explaining "the Voting Rights Act requirements overrode [socio-economic] considerations and that in order to avoid retrogression we would need to in some cases create districts that might not be perfect under state constitutional standards but would withstand scrutiny under the Voting Rights Act." [Bd. Exc. 1009.]

necessary." [Jt. Exc. 132-33.] The Trial Court's contradictions are impossible to decipher. If HD36 had to have a higher Native VAP in order to create an effective Senate district, then is HD36 necessary under the VRA? And if it is, then how did the Trial Court conclude HD38 was not necessary because all of the Native districts have a higher Native VAP than necessary?

In short, the geographic and demographic realities of the Alaska Native population in Alaska establish that the Trial Court's decision is not only legally erroneous, but also factually unworkable. The Trial Court's decision on HD38 must be reversed.[20]

4. Even Under the Trial Court's Flawed Reasoning, HD38 is Necessary Under the VRA.

For the reasons explained above, the trial court's ultimate conclusion that HD38 is not necessary under the VRA and its reasoning that the Alaska Native districts need only 42% Alaska Native VAP to be in compliance with the VRA is erroneous and should be overturned. However, even under the Trial Court's flawed rational, the configuration of HD38 is necessary under the VRA.

The Trial Court agrees with Dr. Handley's analysis that 42% Alaska Native VAP would provide Alaska Natives with the ability to elect their candidate of choice in most

[20] Decreasing the Alaska Native VAP in effective House districts to the bare minimum as proposed by The Trial Court also raises serious Section 2 implications. Just as the packing of minority voters can be a sign of discrimination, so can significantly reducing the Alaska Native VAP from the benchmark, or fracturing Alaska Natives into several districts. *Gingles v. Edmisten*, 590 F. Supp. 345 (E.D.N.C. 1984), *aff'd in part, rev'd in part sub nom. Thornburg v. Gingles*, 478 U.S. 30 (1986). Under the Trial Courts rationale the Board would be prohibited from constructing districts in which Alaska Native constitute a majority of the VAP which is highly likely to be considered as diluting the voting strength of Alaska Natives.

of the effective Alaska Native House districts. [Jt. Exc. 122-123; Bd. Exc. 1074.] Dr. Handley's RBV analysis also found that Benchmark HD6 needs approximately 50% Alaska Native VAP due to racially polarized voting in that district over the last ten years. [Bd. Exc. 1074-1075; TT 770:6-11; 888:2-4.] The Trial Court correctly recognizes a portion of Benchmark HD6 is included in HD38. [Jt. Exc. 128-129.] When taking into consideration the Alaska Native VAP the Trial Court considers "necessary" under the VRA for Benchmark HD6 and the rest of HD38, the "necessary" Alaska Native VAP for HD38 is 46% - the difference between 50% and 42%, which Plaintiffs' VRA expert agreed he "would draw the district." [TT 59:7-19.] The Alaska Native VAP in HD38 is 46.36%. [Bd. Exc. 1145.] Thus, even under the trial court's incorrect reasoning, HD38 is necessary under the VRA as it only contains the minimum Alaska Native VAP needed to be effective. The Trial Court's conclusion that the configuration of HD38 is not necessary in order to comply with the VRA is wrong even under its own flawed logic.

B. The Configuration of House District 37 Was Necessitated By The Board's Need to Create a Non-Retrogressive Plan that Complied with Section 5 of the VRA.

1. The Trial Court Erroneously Ruled the Alaska Native VAP in the Alaska Native Districts is Higher Than is Necessary under the VRA.

Despite properly recognizing that the Board was required to increase the Alaska Native VAP in HD36 in order to create a third effective Senate district[21] [Jt. Exc. 128

[21] The Board needed to increase the Alaska Native VAP in House District 36 so the Alaska Peninsula could be paired with Kodiak to form a third "effective" Senate district and meet the benchmark. [Jt. Exc. 128 n.213; BR 3328, 3431; Bd. Exc. 1085-1086, 1242; TT 797:22-798:5; 949:6-950:2.] The best way to accomplish this was to separate the communities in the Aleutian Chain with large, non-Alaska Native populations from

n.213], the Trial Court still inexplicably concludes it cannot find HD-37 is necessary under the VRA "when all five of the effective house districts have more Native VAP than necessary." [*Id.* at 127.] The Trial Court's "more Native VAP than necessary" rationale as to HD37 is erroneous for the same reasons discussed above in relation to HD38,[22] and therefore must be reversed.

2. The Trial Court Erroneously Concluded the Board's Concerns Regarding the Pairing of Alaska Native Incumbent Lyman Hoffman Were Too Speculative.

Despite holding that "[t]his and other courts in Alaska have ruled that minority incumbent pairing is a factor that DOJ considers," as well as specifically finding as "credible" the testimony of the Board's witnesses that they were legitimately concerned that objections from Alaska Native groups would seriously jeopardize Alaska's ability to obtain preclearance[23] [Jt. Exc. 124 & n.200; 125 & n.204; 126], the Trial Court found that the Board's concerns regarding pairing the most powerful and influential Alaska Native incumbent, Senator Lyman Hoffman, "were too speculative to meet the standard of necessary." [Jt. Exc. 126.] The Trial Court supported its erroneous conclusion with three factors: (1) the Court's "belief" that DOJ would not consider the pairing of two out

---

the Western Aleutians, and add them to the Bethel region with its high concentration of Alaska Native VAP. [BR 3326, 3339-3340, 3430, 3433.]

[22] The arguments set forth in Sections A.1.a, A.1.b., A.1.c, A.3, *supra* are hereby incorporated by reference as though fully set forth herein.

[23] The Plaintiffs' VRA expert, Dr. Arrington, also testified at trial that the DOJ takes into consideration the pairing of Native incumbents. [TT 85:20-86:25; 98:7-99:6.] He also opined at trial that the Board "certainly . . . wouldn't want to pair two Native candidates of choice," and should also avoid pairing a Native candidate of choice with a non-Native candidate. [TT 86:10-15.]

of seven Native incumbents a pattern; (2) the Proclamation Plan paired another Alaska Native incumbent and still obtained preclearance; and (3) the Proclamation Plan received one objection from a Native group and was still precleared. None of the factors relied upon by the Trial Court, however, actually support its conclusion.

a. The Trial Court's "Belief" of No Pattern

The Trial Court's "belief" that DOJ would not consider the pairing of two out of seven Native incumbents is, ironically, itself completely speculative. It also downplays the real and significant concerns regarding preclearance faced by the Board.

Whether or not a plan is retrogressive is only part of the DOJ analysis in determining whether a plan complies with Section 5 of the VRA. The DOJ also looks at whether there was intentional discrimination. DOJ Guidelines at 7470-7471. [*See also* TT 802:12-803:4.] In so doing, the DOJ examines the circumstances surrounding a redistricting plan for any direct or circumstantial evidence of any discriminatory purpose.[24] *Id.* at 7471.

The Board knew the DOJ would pay particular attention to the public comments the Board received from Alaska Natives, whether they approved or disapproved of the plan, and whether or not the Board took Alaska Native concerns into consideration when

[24] At trial, Dr. Handley explained that DOJ will solicit comments from interested stakeholders, such as the Alaska Native community, and will follow up on the information that they receive. [TT 802:18-22, 25-803:4.] The DOJ relies on these comments "from ...the [Alaska Native] community as a whole, from Alaska Native incumbents, to insure these groups are not dissatisfied with the plans." [*Id.*] Dr. Handley stressed that the DOJ gives substantial weight to these comments, and could object to a plan, even if it is not retrogressive, based on a minority group's contention that the plan discriminates against them. [TT 925:16-926:2.]

drawing the plan. 28 C.F.R. § 51.57-51.59. [*See also* TT 192:4-14; 220:8-24; 581:1-15; 925:16-926:2.] As a result, the Board actively sought input from the Alaska Native Community throughout the redistricting process and took their concerns into account when drafting election districts. [Bd. Exc. 1283, 1286, 1295.] Throughout the public hearing process, the Alaska Native community consistently informed the Board that one of their major concerns was the importance of avoiding pairing Alaska Native incumbents so as not to reduce the Alaska Native influence in the legislature. [*Id*; Bd. Exc. 1010, 1012-1015, 1017-1019.]

In attempting to create a plan that effectively "harmonized" all the competing legal requirements, the Board was justifiably concerned not only with meeting the Benchmark, but also "about minority comment and the pairing of minority incumbents." [Jt. Exc. 123.] Pairing a second Alaska Native leader such as Senator Hofffman was particularly disconcerting to the Board because it was already forced to unavoidably pair another Alaska Native incumbent senator, Senator Kookesh, in Southeast due to significant population loss. [Jt. Exc. 124 & n.202.] This, coupled with the overwhelming objections from the Native community to specifically not pair Senator Hoffman [Jt. Exc. 126; Bd. Exc. 1121, 1020-1022, 1118-1119, 1120, 1122-1123, 1124-1125, 1126; TT 218:8-220:24; 252:4-14; 404:21-405:22; 579:17-581:15; 587:4-14], and the fact the Board had to substantially decrease the Alaska Native VAP in the effective districts from the benchmark, made the Board rightfully concerned about its ability to obtain preclearance. The Board's concerns regarding pairing Native incumbents were obviously more than "speculation" as demonstrated by the fact that the only substantive questions DOJ asked

the Board when it met in September was how the Proclamation Plan treated Alaska Native incumbents.[25] [Jt. Exc. 124 & n.201; TT 238:23-239:19; 595:8-19.]

The Trial Court's "speculation" conclusion also directly contradicts its previous ruling in this case. In rejecting a compactness challenge to HD32 by the City of Petersburg, the Trial Court expressly found that the Board's decision to configure HD34 in a way that would not pair a second Alaska Native incumbent, Representative Bill Thomas, "was justified." [Jt. Exc. 124, 158-60.] The Trial Court provides no explanation for this contradiction. The Board suggests the Trial Court got it right the first time.

b. Preclearance Despite Pairing of Senator Kookesh

The second factor the Trial Court relies on in finding the Board's concerns over pairing Native incumbents was "too speculative" is the fact that the plan paired Native Senator Kookesh and still passed DOJ preclearance. [Jt. Exc. 126.] Once again, the Trial Court's rational does not support its conclusion.

First, as a result of the various demographic changes and legal requirements, pairing Alaska Native Incumbent Senator Kookesh (who is also co-chair of the Alaska Federation of Natives) in Southeast was unfortunately unavoidable. [Jt. Exc. 124.] The Board's conclusion was born out by the fact that no viable private party plans presented to the Board were able to avoid pairing Senator Kookesh. [*Id.*] It was, however, possible

[25] In response to the DOJ's inquiries, the Board's representatives explained that the Proclamation Plan in fact kept every current Alaska Native incumbent or Alaska Native preferred candidate in an Alaska Native district, and no Alaska Native incumbents were paired with one unavoidable exception.

to avoid pairing Senator Hoffman as shown by the Board's Proclamation Plan.

Second, because Senator Kookesh's pairing was unavoidable, the Board received no objections or complaints to the pairing during the redistricting process. Nor were any complaints lodged with DOJ. Conversely, the Board received numerous objections from the Native community regarding the pairing of Senator Hoffman, as that pairing was not unavoidable. [Jt. Exc. 126; Bd. Exc. 1121, 1020-1022, 1118-1119, 1120, 1122-1123, 1124-1125, 1126; TT 218:8-220:24; 252:4-14; 404:21-405:22; 579:17-581:15; 587:4-14.] The Board's decision not to pair Senator Hoffman was justifiable and necessary in order to create a plan that provided the Board with the best opportunity to obtain preclearance from the DOJ.[26]

c. Preclearance Despite Objection From Aleut Corporation

The Trial Court also claims that its "speculation" conclusion is supported by the fact that the Proclamation Plan obtained preclearance despite an objection from the Aleut Corporation. [Jt. Exc. 126-27 & n.207; Bd. Exc. 1248.] There are, however, several problems with the court's reliance on this letter.

Initially, there is no evidence in the record (and the Plaintiffs offered no proof) that this letter was actually submitted to DOJ. The Board submitted a continuing FOIA request to the DOJ throughout the preclearance process, requesting copies of any comments regarding the Board's Proclamation Plan. [TT 591:3-16.] The Board never

[26] The extent of and reasons for the Alaska Native communities' objection to the pairing of Senator Hoffman will be amplified by *amicus* briefs the Board expects to be filed by several Alaska Native groups.

received a copy of the Aleut Corporation's letter in response to its FOIA requests. [*Id.*][27]

More importantly, the Aleut Corporation does not object to the plan under the VRA. [Bd. Exc. 1248.] It raises no claims that the Board's Proclamation Plan has the "purpose or effect" of denying or abridging Alaska Natives' voting power. 42 U.S.C. § 1973c. Rather, it objects to "the breaking up of the current House District 37 . . . and the division of the Aleutians East Borough into two separate house and senate districts" based on socio-economic integration concerns, a *state* constitutional requirement, not a VRA concern. [Bd. Exc. 1248.] As DOJ does not review redistricting plans for state constitutional compliance, the Aleut Corporation's objection proves nothing regarding the legitimacy of the Board's concerns as to potential VRA objections by Alaska Native groups. The Trial Court's reliance on the Aleut Corporation's letter is misplaced.[28]

In sum, the Trial Court's conclusion that the configuration of HD37 was not justified based on the Board's decision to avoid pairing Alaska Native incumbents because "the Board cannot base the plan on fear of speculative consequences" [Jt. Exc.

---

[27] The letter also contains no "stamp" placed on all submissions received by the DOJ. [Bd. Exc. 1248.] By comparison, in the upper right hand corner of an objection submitted by Leonard Lawson on behalf of the Alaska Democratic Party, there is a stamp confirming receipt by the DOJ of a "Section 5 Submission Comment" which lists Alaska's redistricting plan DOJ reference "No. 2011-2995." [Bd. Exc. 1249-1253.]

[28] The Trial Court's reference to Dr. Handley's testimony "about another plan in the lower 48 that had objection from Native groups and still passed preclearance" is just as misplaced. [Jt. Exc. 126.] Review of Dr. Handley's actual testimony on this point establishes she was referencing objections filed by Indian groups regarding the "homogeneity" issue, in particular the combination of Hopi and Navaho Indians in Arizona. [TT 926:10-927:3.] The Trial Court correctly found that the "current federal law" as to Alaska Natives is "homogeneity." [Jt. Exc. 3 & n.9.]

127] ignores legal and factual realties. Reduced to its essence, the Trial Court seeks to substitute its judgment for that of the Board as to how to best comply with the VRA. However, such is not the job of the Trial Court. *E.g. Kenai Peninsula Borough,* 743 P.2d at 1357-1358.

Compliance with Section 5 of the VRA is more an art than a science. As such, it inherently has a good deal of speculation to it. The Board had legitimate and reasonable concerns regarding what DOJ would do with a redistricting plan that paired several important and influential Alaska Native incumbents, factors it knew the DOJ took into consideration when reviewing a plan for preclearance. The Trial Court erroneously diminishes the importance of these concerns not only as to preclearance, but to the Alaska Native community. The Court should reverse the Trial Court's decision on HD37 and hold the Board was justified in not pairing Native incumbent Senator Hoffman, thereby splitting the Aleutian Chain, in order to adopt a plan that avoided objections from the Alaska Native community and therefore had the best opportunity to obtain preclearance.

STATEMENT OF RELIEF SOUGHT

The Board respectively requests that this Court grant review and reverse the Superior Court's decision that the configuration of Proclamation House Districts 37 and 38 were not justified by the Board's need to create a non-retrogressive plan that complied with the Voting Rights Act. Based on its *de novo* review of the record, this Court should find and conclude that the configuration of House Districts 37 and 38 were both necessary and justified by the Voting Rights Act, which in turn required the Board to

deviate from the state constitutional requirements of contiguity and compactness in House District 37, and socio-economic integration in House District 38.

DATED at Anchorage, Alaska this 21st day of February 2012.

PATTON BOGGS LLP
Counsel for Alaska Redistricting Board

By: _____
Michael D. White
Alaska Bar No. 8611144
Nicole A. Corr
Alaska Bar No. 0805022

CERTIFICATE OF TYPEFACE

Pursuant to Alaska Rule of Appellate Procedure 513.5(c)(2), I hereby certify that the foregoing document was prepared in typeface 13 point Times New Roman.

CERTIFICATE OF SERVICE

I hereby certify that on the 21st day of February 2012, I caused a true and correct copy of the foregoing document to be served via:

☒ **US Mail** ☐ Fax ☐ Hand-Delivery ☒ Electronic Mail

on:

Michael J. Walleri; walleri@gci.net
2518 Riverview Drive
Fairbanks, AK 99709

By: _____
Cynthia Karras
Legal Secretary

73360